

Court No. - 32

Case :- WRIT - C No. - 17623 of 2022

Petitioner :- Hakim Singh Ravat

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Dharendra Singh Rajput

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Vikram D. Chauhan,J.

As prayed, put up on 22nd July, 2022 as fresh.

Order Date :- 24.6.2022

D. Tamang

Court No. - 3

Case :- WRIT - C No. - 17623 of 2022

Petitioner :- Hakim Singh Ravat

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Dharendra Singh Rajput

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Heard Sri Dharendra Singh Rajput, learned counsel for the petitioner, learned Standing Counsel for the State-respondent and Sri Baleshwar Chaturvedi, learned counsel for the respondent no.2.

This writ petition has been filed praying for the following reliefs:

" i) Issue a writ, order or direction in the nature of certiorari quashing the impugned recovery notice dated 11.07.202 (Annexure no. 01 to this writ petition) issued by Executive Engineer Dakshinanchal Electricity Distribution Cooperation Limited, Electricity Distribution Division Baah, District Agra/ respondent no. 02 against the petitioner.

ii) Issue a writ, order or direction in the nature of mandamus commanding the respondents not to harass or penalize the petitioner in pursuance of recovery notice dated 11.07.2021".

Learned counsel for the respondent No 2/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is ***disposed off*** giving liberty to the petitioner to submit his/ her objection under ***Para 6.5 of U.P. Electricity Supply Code, 2005*** before the respondent No.2 within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.2 in accordance with law, expeditiously, preferably within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 4.8.2022

T.S.